



OFFICE OF THE POLICE COMMISSIONER

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February 18, 2009

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Christopher Lembo**
Tax Registry No. 930552
Printing Section
Disciplinary Case No. 82596/07

The above named member of the service appeared before Assistant Deputy Commissioner Robert W. Vinal on July 28, 2008 and was charged with the following:

DISCIPLINARY CASE NO. 82596/07

1. Said Police Officer Christopher Lembo, assigned to the 104 Precinct, while on-duty, on or about January 15, 2007, at a location known to this Department, in Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Police Officer Lembo did drive a Department automobile in a reckless manner causing another member of the service, identity known to this Department, to fall to the ground upon being struck by the vehicle operated by Police Officer Lembo. (As amended)

PG 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

2. Said Police Officer Christopher Lembo, assigned to the 104 Precinct, while on-duty, on or about January 15, 2007, at a location known to this Department, in Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Police Officer Lembo stated to said member of the service who was injured, in sum and substance, "What are you doing, you want to play this game," and then kicked said MOS once about the body while he was on the ground. (As amended)

P.G. 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

3. Said Police Officer Christopher Lembo, assigned to the 104th Precinct, while on-duty, on or about January 15, 2007, at a location known to this Department, in Queens County, did wrongfully and without just cause make an unauthorized radio transmission, to wit: transmitted over the radio, "I need a Bus for an Idiot Officer." (As amended)

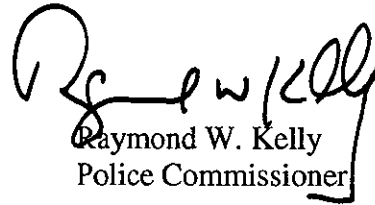
P.G. 203-10, Page 1, Paragraph 4

GENERAL REGULATIONS

In a Memorandum dated November 17, 2008, Assistant Deputy Commissioner Vinal found the Respondent Not Guilty of Specification Nos. 1 and 2, and Guilty of Specification No. 3. Having read the Memorandum and analyzed the facts of this instant matter, I approve the findings, but disapprove the penalty.

POLICE OFFICER CHRISTOPHER LEMBO
DISCIPLINARY CASE NO. 82596/07

The Respondent's actions instigated this incident and his subsequent conduct perpetuated this event. Respondent Lembo is to forfeit the full 30 Suspension days previously served.



Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

November 17, 2008

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Christopher Lembo
Tax Registry No. 930552
Printing Section
Disciplinary Case No. 82596/07

The above-named member of the Department appeared before me on July 28, 2008, charged with the following:

1. Said Police Officer Christopher Lembo, assigned to the 104 Precinct, while on-duty, on or about January 15, 2007, at a location known to this Department, in Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Police Officer Lembo did drive a Department automobile in a reckless manner causing another member of the service, identity known to this Department, to fall to the ground upon being struck by the vehicle operated by Police Officer Lembo. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

2. Said Police Officer Christopher Lembo, assigned to the 104 Precinct, while on-duty, on or about January 15, 2007, at a location known to this Department, in Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Police Officer Lembo stated to said member of the service who was injured, in sum and substance, "What are you doing, you want to play this game," and then kicked said MOS once about the body while he was on the ground. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

3. Said Police Officer Christopher Lembo, assigned to the 104th Precinct, while on-duty, on or about January 15, 2007, at a location known to this Department, in Queens County, did wrongfully and without just cause make an unauthorized radio transmission, to wit: transmitted over the radio, "I need a Bus for an Idiot Officer." (*As amended*)

P.G. 203-10, Page 1, Paragraph 4 – GENERAL REGULATIONS

COURTESY • PROFESSIONALISM • RESPECT

The Department was represented by Penny Bluford-Garrett, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty of Specification No. 3. The Respondent is found Not Guilty of Specification Nos. 1 and 2.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Police Officers Timothy Ryan and Geemaayi Simmons as witnesses and offered into evidence a compact disc (CD) containing a radio transmission initiated by the Respondent.

Police Officer Timothy Ryan

Ryan, a three-year member who is presently assigned to duties at the College Point Auto Pound, testified that he joined the Department after working for ten years as a school teacher, mainly instructing special education students. Upon graduation from the Police Academy, he was assigned to patrol duties at the 104 Precinct. On January 14, 2007, he began a tour that was scheduled to end on January 15, 2007 at 0205 hours. His assignment was a foot post at Myrtle Avenue and Cypress Avenue, Queens. It was

drizzling that night. At 0115 hours, because he was nearing the end of his tour and because he saw a marked Radio Motor Patrol car (RMP) stop at the intersection of Putnam and Cypress with its hazard lights flashing, he left his post and walked toward this RMP because he wanted to check on why the RMP had stopped there. As he arrived at the intersection of Putnam and Cypress, another RMP pulled up behind him. He recognized the operator, who was the Respondent.

He heard loud "crowing" sounds emanating from the Respondent's RMP and he recognized the Respondent's voice because he had teased Ryan by imitating bird sounds on previous occasions. Ryan testified that because he possessed "a falconer's license," the Respondent would "wait for me" either in the "lobby of the 104" station house, or at the bottom of the stairs which lead to the sign out log, when Ryan signed out at the end of his tour. The Respondent would then "harass" him by making bird sounds and by repeating, "Goodnight Ryan! Goodnight Ryan!" Ryan testified that the Respondent had done this to him on "several" occasions resulting in "unwanted attention" as Ryan was "quietly trying to leave" the station house.

Ryan walked over to the passenger side of the Respondent's RMP. The Respondent was in the driver's seat next to an officer who was serving as recorder, whose name Ryan could not recall. The Respondent, who was laughing, told him, "Ryan, you're an EDP (Emotionally Disturbed Person). You're a psycho. How did you get on this job? I want to meet your investigator. They probably threw your file away." Ryan testified that to be spoken to in this manner was "heart wrenching" to him and that it made him feel "unwanted" and "degraded." Ryan testified that he responded, "Can I ask you a question? Which parent did you inherit that gene from?" Ryan recalled that after

he said this, the Respondent "looked stunned." The recorder got out of the RMP, but he left the front passenger door open. It was drizzling and the road pavement was damp.

As Ryan turned to walk away, he heard the Respondent laugh and say, "Ryan, you're a psycho." The Respondent then "punches the gas" and placed the RMP in motion. The passenger side of the RMP hit Ryan. The front passenger door hit the front of his body. The RMP made contact with his "abdomen, the hips, the left thigh, the tibia and fibula, the left ankle and left foot." Ryan testified that he "spun off" the RMP and "got slammed" to the ground. As he was falling down, the rear tire on the passenger side of the RMP "ran over" his "left foot." The Respondent then stopped the RMP. Ryan was unsure as to how fast the RMP was moving when it hit him.

The Respondent got out of the RMP, stood over Ryan and said twice, "You want to play this game? I'll play this game. Get up Ryan!" Ryan grabbed his radio. Ryan testified that the Respondent tried to pull it away from him and then slapped the radio out of his hand and told him twice, "You want a bus (an ambulance)? You're not getting a bus!" The Respondent also told him, "If you're not going to get up, we're going to drag you to the side of the street." The Respondent stated to the other officers, "Let's pick up Ryan and bring him over to the curb if he's not moving." Ryan reached for his cell phone because he wanted to call his brother, who is a sergeant. Ryan testified that as he did this, the Respondent said, "Get up Ryan! Get up Ryan!" The Respondent then "wound up like a soccer kick" and kicked him once on the left side of his neck.

Ryan recalled that the Respondent began "pacing frantically back and forth." The Respondent then radioed for a supervisor to respond to the scene stating that it was a non-emergency. The Respondent then stated into the radio, "We need a bus for this idiot

member of the service.” Ryan recalled that he felt “unwanted” and that he “felt I was left out there to die.” The other officers at the scene were standing off to the side. Soon, a number of RMPs arrived at the scene. Police Officer Geemaayi Simmons, who was assigned to the 104 Precinct, was in one of them. Ryan was transported by ambulance to Elmhurst General Hospital. He felt “physically hurt and mentally degraded” and experienced pain in his “lower leg,” his left leg, left ankle, hip, back and neck. The treating physician’s prognosis was “sciatica, mostly.” He initially testified that he could not recall what medication he was prescribed, but, after a short break in his testimony, he recalled that he was prescribed “Percocet.”

On cross-examination, Ryan testified that he had complained to his PBA delegate that the Respondent was harassing him inside the station house, but he did not tell any supervisor about the Respondent’s actions and he did not file an OEEA complaint against the Respondent. Ryan reiterated that on January 15, 2007, he had responded to the Respondent’s remarks that he was a “psycho” and an “EDP” by asking the Respondent, “Can I ask you a question? What parent did you inherit that gene from?” When Ryan was asked whether he told the Respondent, “Go fuck your father,” he responded that he was sure that he had not said that to him. When Ryan was asked whether he had exclaimed, “Go fuck your mother,” or “Fuck you, asshole,” he answered, “I don’t recall.” The Respondent was “giggling and laughing” at him and so was the recorder. When Ryan was asked whether he was upset when that the Respondent and the recorder were giggling and laughing at him, he began his answer by stating, “As a school teacher and working with children who have...” He then stated that he was “disappointed” that they were making fun of him.

When Ryan was asked whether he recalled being involved in an off-duty incident in Nassau County during November, 2007, regarding a vehicle in front of his residence, he initially responded, "Every day is an incident." He then testified that he did recall this incident and that the Nassau County Police Department became involved in the incident because someone made an allegation against him that he had damaged a vehicle. When Ryan was asked whether he had knowledge of any payment of money to the owner of this vehicle, he responded, "To answer that question, no." Ryan was then asked, "Did anyone pay money to this person?" He responded, "Yes," and acknowledged that he had personally paid money to this person.

Ryan's testified that when the Respondent gave him a soccer kick on the left side of his neck, the Respondent drew his leg all the way back and took a full swing with his leg. When Ryan was asked whether he had suffered any bruising on his neck where the kick struck it, he responded that he had suffered "a stiff neck for at least a week where I couldn't move my neck." He was not prescribed a neck brace or directed to wear a neck brace. He was released from Elmhurst Hospital on the morning of this incident. Ryan testified that soon after this he was examined by his private physician who gave him prescriptions for Ibuprofen and for a muscle relaxant.

Police Officer Geemaayi Simmons

Simmons, who is assigned to the 104 Precinct, testified that she was assigned to patrol duties at the 104 Precinct in January, 2007. During the early hours of January 15, 2007, she responded to a radio transmission that an "MOS" was "down" at the intersection of Putnam and Cypress, Queens.

When her RMP arrived at that location, she observed Ryan “laying on the ground, upset, talking on a cell phone.” The Respondent was standing over him and appeared to be angry at Ryan. Simmons heard the Respondent ask Ryan, “Who are you on the phone with?” Simmons recalled that because she felt that the Respondent was acting “a little too aggressive” toward Ryan, she “grabbed” him. The Respondent pulled away from her grasp and told her, “Get off me!” The Respondent later apologized to her for pushing her off of him.

On cross-examination, Simmons acknowledged that she had approached the Respondent from behind and that she did not say anything to him before she grabbed him from the rear. She estimated that ten to 15 civilians had gathered to watch what was going on.

The Department introduced into evidence a CD containing the radio transmissions made by the Respondent during this incident on January 15, 2007 (Department’s Exhibit 1). On this CD, the Respondent is heard telling the dispatcher that he is at the intersection of Putnam and Cypress and that he is requesting that the patrol “sergeant” respond to the location but that there is “no emergency.” The Respondent then states, “Can I have a bus rushed to this location.” The dispatcher then asks the Respondent, “What is the condition of the aided?” The Respondent is heard replying to the dispatcher, “An idiot MOS laying on the floor.” The Respondent then adds, “He’s fine.”

The Respondent’s Case

The Respondent testified in his own behalf.

The Respondent

The Respondent testified that prior to joining this Department, he served four years in the U.S. Marine Corps rising to the rank of corporal before he was honorably discharged. He was assigned to the 104 Precinct, performing patrol duties, on January 14, 2007. He started his tour of duty at 2300 hours. He was assigned as the operator of RMP 1796, a vehicle which had "acceleration problems." Police Officer Roidis was the recorder.

On January 15, 2007, at 0100 hours, he and his partner drove toward an RMP operated by Police Officer Arbon which had stopped at the intersection of Putnam and Cypress, Queens. When their RMP arrived at that location, they observed Ryan standing nearby. Police Officer Roidis asked him, "Ryan, are you coming to midnights?" Ryan responded in a loud voice, "Go fuck your mother." Ryan then repeated this to the Respondent. Ryan then said, "Your mother or your father." The Respondent testified that Ryan then "leared" at him and asked him, "You hear about the genes?" The Respondent then told Ryan, "I think you're crazy." Ryan responded, "Keep on saying that. Keep on saying that." The Respondent asked Ryan, "Why? Are you trying to get off on a discharge? You know what? You're fucking crazy."

The Respondent testified that during this verbal exchange, Ryan was about "one foot away" from the RMP. The Respondent moved the RMP about "two feet." He heard a "big bang on the roof." Ryan "rolled over" the RMP onto the ground. He refused to get up and the Respondent did not immediately radio for assistance because he believed that Ryan was feigning an injury and he "didn't want an unnecessary thirteen (1013 call)."

The Respondent acknowledged that he told the dispatcher that he needed "a bus" for an "idiot MOS." He testified that he said this "because Ryan was acting like a fool."

On cross-examination, he testified that when he told Ryan, "I think you're crazy," he also called him "Coo, Coo," meaning insane. He acknowledged that he told Ryan, "I think you're fucking nuts," but he denied that he had called Ryan "an EDP." He testified that he did not know at the time this incident took place that Ryan owned birds and he never called Ryan "birdman."

He was confronted with a statement he made at his official Department interview that "someone said he (Ryan) went into roll call with an owl." He explained that his official Department interview took place 17 hours after this incident and that during that time he had learned from other officers that Ryan owned birds and that he had brought one into the station house.

He was confronted with another statement he made at his official Department interview in response to the question, "Have you ever made bird sounds to Ryan?" He had responded by stating, "Yeah, like later on in the car." He testified that he was referring to the "Coo, Coo" remark he directed at Ryan.

He testified that he offered to transport Ryan to Wycoff Hospital, which was only four blocks away. He acknowledged that because he believed that Ryan was feigning an injury, he kicked Ryan's radio and tried to grab his cell phone. He acknowledged that he has previously been involved in vehicular accidents.

FINDINGS AND ANALYSIS

Specification Nos. 1 and 2

It is charged that the Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, by driving an RMP “in a reckless manner” causing Ryan “to fall to the ground upon being struck by the vehicle,” and that after Ryan had been “injured” by being struck by the RMP, the Respondent stated, “What are you doing, you want to play this game,” and then “kicked” Ryan once on his neck while he was on the ground.

I find the Respondent Not Guilty of these two Specifications because the Department did not prove by a preponderance of the credible evidence that the Respondent drove his RMP “in a reckless manner,” or that at the time Ryan was on the ground he was “injured,” or that the Respondent kicked Ryan in the neck.

The threshold issue presented by the wording of Specification No. 1 is: Did the Department meet its burden of proving by a preponderance of the credible evidence that the Respondent drove his RMP in a reckless manner? In determining whether the Respondent drove recklessly, the applicable standard of care the Respondent was required to conform to must first be addressed. Since the Patrol Guide does not define what constitutes reckless driving, other sources must be referenced. The Vehicle and Traffic Law defines “reckless driving” as driving “which unreasonably interferes with the free and proper use of the public highway, or unreasonably endangers users of the public highway.”¹ Although the Respondent here is not charged with a Penal Law violation, the Penal Law definition of the culpable mental state of “recklessly” is, nonetheless, instructive. Under the Penal Law, a person acts recklessly “when he is aware of and

¹ Vehicle and Traffic Law, section 1212.

consciously disregards a substantial and unjustifiable risk” that a result will occur and “(t)he risk must be of such nature and degree that disregard thereof constitutes a gross deviation from the standard of conduct that a reasonable person would observe in the situation.”²

The only evidence offered by the Department to prove that the Respondent drove in a reckless manner was the testimony of Ryan, the complainant. Ryan testified that the Respondent had “punched the gas” causing the rear end of the RMP to “fish tail” on the damp pavement and veer toward Ryan. Even if I credited Ryan’s claims, although the Respondent may have been negligent, it is not clear that such a scenario sufficiently establishes the higher culpable mental state of recklessness and the Assistant Department Advocate offered no civil or criminal case where a court held that a defendant had driven recklessly based on facts similar to those described by Ryan.

However, I need not reach the issue of whether the Respondent drove his RMP in a reckless manner since I cannot rely on Ryan’s description of his driving because I do not credit Ryan’s claim that his body was struck so hard by the RMP that he was “slammed” onto the pavement or his claim that the right rear tire on the RMP “rolled over” his left foot.

In evaluating the credibility of Ryan’s testimony, I would initially note that based on his demeanor on the witness stand, the Assistant Department Advocate described her witness as “a little eccentric.” I find that Ryan displayed a disturbing lack of candor when he was questioned on cross-examination regarding an off-duty incident in Nassau County during November, 2007, in which he was accused of damaging a vehicle in front of his residence. When Ryan was asked whether he recalled this specific incident, he

² Penal Law, section 15.05(3).

initially responded, "Every day is an incident." When Ryan was asked whether he had knowledge of any payment of money to the owner of the vehicle, he responded, "To answer that question, no." The very next question posed to Ryan was, "(Did) anyone pay money to this person?" He responded, "Yes," and then acknowledged that he had personally paid money to the owner of the vehicle.

Ryan's responses to other questions posed to him on cross-examination were similarly evasive or non-responsive. For example, when Ryan was specifically asked whether he became upset because the Respondent and his partner were laughing at him, he responded by saying, "As a school teacher and working with children who have..." Also, Ryan's testimony that the Respondent had repeatedly teased and "harassed" him prior to January 15, 2007, establishes that Ryan had a motive to want to get back at the Respondent and possibly make trouble for the Respondent. I find it significant that Ryan testified that the Respondent had harassed him again just moments before he fell to the ground. Ryan's testimony that the Respondent's teasing was so "heart wrenching" to him that it made him feel "unwanted" and "degraded," raises the suspicion that Ryan remained prone on the ground and demanded that the Respondent call for an ambulance not because he was actually injured but because he wanted to make trouble for the Respondent. This supposition has support in the record in that Ryan's description of how he was struck by the RMP is inconsistent with part of his testimony regarding where on his body he experienced pain and it is also inconsistent with the treatment he received at Elmhurst Hospital and from his personal physician.

Ryan asserted that the RMP hit him on his "abdomen," his "hips," his left thigh, his "tibia and fibula" and his "left ankle," that he was then "slammed" onto the hard

pavement, and that as he was falling, the right rear tire “ran over” his “left foot.” Yet, when he was asked in what parts of his body he had felt pain, he stated “my lower leg, my left ankle, my left leg, my hip, my lower back, my back and my neck.” Incredibly, he did not even mention his left foot, which he had just testified had been run over by one of the four tires supporting a vehicle weighing about 3,500 pounds.

With regard to the treatment he received at Elmhurst Hospital, he admitted that he was diagnosed as having suffered no observable injury such as a sprain, a cut or a contusion. Also, he initially, and rather bizarrely, testified that he could not recall the only medication that the treating physician at the hospital had prescribed for him (although, after a short break, he recalled that he had been prescribed the pain reliever Percoset). Moreover, when Ryan was examined by his personal, private physician, the only treatment he received was prescriptions for Ibuprofen and a muscle relaxant.

Finally, I would note that although Ryan testified on cross-examination that he had a clear recollection that he had specifically asked the Respondent, “Can I ask you a question? What parent did you inherit that gene from?” and that he was also certain that he did not tell the Respondent, “Go fuck your father,” the certainty of his recollection evaporated when he was asked whether he had directed profanity at the Respondent. He testified that he could not recall whether he had told the Respondent, “Go fuck your mother,” or “Fuck you, asshole.” Ryan’s asserted inability to recall whether he had directed these profanities at the Respondent demonstrates such a highly selective memory that his lack of recollection claim is not believable.

The facts here are similar to a disciplinary case where a member was charged with wrongfully ramming the RMP he was operating into the rear of a motorcycle on which a

civilian was seated. The Respondent in that case was found Not Guilty because the Trial Commissioner determined that the civilian's testimony about his alleged injuries lacked credibility since his injury claim was unsupported by medical testimony or records and there was an absence of damage to the rear of his motorcycle. Disciplinary Case No. 79484/03 (approved on September 19, 2005).

With regard to that part of Specification No. 2 that alleges that when Ryan was prone on the ground he "was injured," as discussed above, the Department's sole proof that Ryan was injured consisted solely of Ryan's subjective claim that he was in pain. In the absence of medical testimony or documentation establishing that the Respondent suffered a physical injury, I cannot credit Ryan's testimony for the reasons cited above.

With regard to that part of Specification No. 2 that alleges that that the Respondent kicked Ryan, the Department's proof, again, consisted solely of Ryan's testimony that the Respondent had "wound up like a soccer kick" and kicked him hard on the left side of his neck. Ryan indicated that the Respondent drew his leg all the way back and took a full swing with his foot, rather a short jabbing motion. When Ryan was asked on cross-examination whether he had suffered any bruising to his neck as a result of this kick, he responded that he had only suffered "a stiff neck," although he acknowledged that he was not prescribed a neck brace.

If the Respondent, who was wearing a shoe, had kicked Ryan in the neck with the hard, soccer-type of kick described by Ryan, it is highly likely that Ryan would have at least suffered a bruise to his neck. In the absence of any medical corroboration whatsoever for Ryan's claim that he was kicked hard on the left side of his neck, I find

that Ryan's testimony, standing alone, does not constitute credible evidence sufficient to meet the Department's burden of proof.

The Respondent is found Not Guilty of Specification Nos. 1 and 2.

Specification No. 3

It is charged that the Respondent wrongfully and without just cause made an unauthorized radio transmission in that he transmitted over the radio, "I need a bus for an idiot officer." The tape recording of the Respondent's transmissions (DX 1) establishes that the Respondent did refer to Ryan as "an idiot MOS laying on the floor." The Respondent acknowledged that he told the dispatcher that the ambulance was for an "idiot MOS" because, by remaining on the ground when he had not suffered any injury, the Respondent believed that Ryan "was acting like a fool."

I credit Simmons' testimony that the Respondent was angry at Ryan. However, even if the reason the Respondent was angry at Ryan was because he believed he was feigning an injury, this does not excuse or even mitigate the Respondent's misconduct of gratuitously referring to another officer as "an idiot" in a radio transmission that the Respondent knew would be heard by MOS who were monitoring radio traffic on the frequency the Respondent utilized.

The Respondent is found Guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974).

The Respondent was appointed to the Department on July 1, 2002. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found guilty of wrongfully and without just cause making an unauthorized radio transmission by telling the dispatcher that the ambulance he had requested was for "an idiot MOS."

In formulating a penalty recommendation, I have taken into consideration the fact that even though he believed that Ryan was feigning injury, the Respondent honored Ryan's request that he radio for an ambulance (the Respondent even requested that the ambulance be "rushed to this location"). Although the Respondent admitted that he had kicked Ryan's radio away from him and that he had tried to grab Ryan's cell phone from him while he was on the ground, the only charged and proved misconduct was that the Respondent gratuitously added a single, improper word to the radio transmission he made in response to the dispatcher's question about Ryan's condition. I have also taken into consideration the Respondent's lack of any prior formal disciplinary record.

The Respondent was suspended from January 15, 2007 to February 14, 2007, and has been assigned to modified duties since February 14, 2007.

It is recommended that the Respondent's penalty consist of the forfeiture of 15 of the 30 days he has already served on suspension and that he is restored of all the time, pay and benefits he lost while on suspension for the remaining 15 days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

